

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #06	CCRB Case #: 201501153	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/18/2014 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/18/2016	Precinct: 79		
Date/Time CV Reported Wed, 02/18/2015 2:34 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/18/2015 2:34 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Matthew Russo	03660	949592	079 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Oscar Palomino	09642	942321	079 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Matthew Russo	Abuse: PO Matthew Russo searched § 87(2)(b) in Brooklyn.			A . Unsubstantiated	

Case Summary

On February 18, 2015, § 87(2)(b) was interviewed at the CCRB for case number § 87(2)(b) which is currently under investigation. During the interview, she filed this complaint.

On December 18, 2014, at approximately after 7 a.m., FDNY firefighters and PO Oscar Palomino and PO Matthew Russo responded to a water leak at the location of § 87(2)(b), in Brooklyn. § 87(2)(b) permitted the firefighters and officers to enter her home to inspect a water leak. Upon walking through § 87(2)(b)'s residence, § 87(2)(b) told the firefighters and officers that the leak was in the kitchen. Before entering the kitchen, PO Russo searched § 87(2)(b)'s bedroom (**Allegation A**). After inspecting the leak, the officers and firefighters left § 87(2)(b)'s residence. § 87(2)(b) was not arrested or issued a summons.

Mediation, Civil and Criminal Histories

This complaint was indicated to be unsuitable for mediation § 87(2)(b), § 87(2)(g). A Notice of Claim inquiry was sent via email on April 29, 2015. The results are pending (encl. 11A). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) had filed one other complaint (§ 87(2)(b)) in conjunction with this complaint (encl. 12A). Her first case is still ongoing (encl. 2A).
- PO Russo has been a member of the NYPD for four years and this is his first CCRB complaint (encl. 1A).

Potential Issues

The FDNY firefighters were not able to be identified through the investigation due to the numerous firefighters/fire trucks that responded to the scene. Additionally, correspondences attempted to identify the specific FDNY units that responded were unsuccessful (encl. 12C-13G).

Witness-

§ 87(2)(b) (**encl. 5A**):

On March 24, 2015, § 87(2)(b) provided a phone statement to the CCRB. § 87(2)(b) is the owner of the building located on § 87(2)(b), in Brooklyn. On December 18, 2014, § 87(2)(b) recalled receiving a call complaining about a water leak in the building. § 87(2)(b) arrived at the location approximately 30 minutes after the call. § 87(2)(b) did not recall any FDNY personnel on scene and assumed that they had left prior to his arrival. § 87(2)(b) saw two officers in the process of leaving the location. § 87(2)(b) denied entering § 87(2)(b)'s home and did not see any officers do so either. Moreover, § 87(2)(b) stated that § 87(2)(b) has had a history of refusing to open the door for anyone, including police officers. § 87(2)(b) has a contentious relationship with § 87(2)(b).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer to be lighter in complexion and had a heavier build than his partner (encl. 4D). According to the officer photo of PO Palomino and PO Russo, PO Russo closely matched the description provided by § 87(2)(b) (encl. 6G). § 87(2)(g)

Allegation A-Abuse of Authority: PO Matthew Russo searched § 87(2)(b), in Brooklyn.

§ 87(2)(b) alleged that after she let the firefighters and officers into her residence, PO Russo lifted up a curtain that was covering various books and electronics and lifted up various articles of clothing as he walked through her bedroom (encl. 4D).

PO Russo and PO Palomino confirmed that FDNY firefighters were already on scene when they arrived at the location (encl. 6F). PO Russo acknowledged assisting the firefighters to gain entry into the apartment (encl. 7F). PO Russo notified § 87(2)(b) that the firefighters were there to perform a water leak inspection. After § 87(2)(b) permitted PO Russo and the firefighters to enter, PO Russo immediately saw the water leaking from the walls. Subsequently, PO Russo stated that he did not need to look anywhere else for the leak since he had already observed the location of the leak. PO Russo denied entering § 87(2)(b)'s bedroom and searching § 87(2)(b)'s residence. PO Russo stated that he was inside the residence for a few seconds then stepped out since it was a FDNY job. PO Russo and PO Palomino finalized the job as a Fire Department non-crime (encl. 6F and 7F).

The Event info confirmed that this incident was regarding a complaint of utility trouble and that the job was closed as a non-crime job (encl. 8C).

§ 87(2)(g)

_____, it is recommended that
Allegation A be closed as **Unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date